ORDINANCE NO. 536

OF THE CITY OF RECTOR

AN ORDINANCE TO AMEND ORDINANCE #461
TO REGULATE PRIVATE DWELLING IN BUSINESS DISTRICT

WHEREAS, it has come to the attention of the City Council for the City of Rector, Arkansas that regulations be implemented for the residential use of commercial buildings.

NOW, THEREFORE, BE IT ORDAINED by the City Council of the City of Rector, Arkansas, as follows, to-wit:

That Ordinance #461 of the City of Rector is hereby amended to add the section herein below to the existing regulation Article 5-4, Section A., to read as follows:

7 Areas of a commercially zoned building may be utilized for single or multiple family residential usage, providing the following qualifications

a. A minimum of two means of ingress and egress will be maintained in the residential area.
b. Each unit will have it's own fire extinguisher and smoke detector inside. Multiple family residences with hallways will have fire extinguisher and smoke detectors in hallway as well.
c. Each residential unit will have it's own kitchen and bathroom facility
d. Ample parking must be provided as described in C-5 of the Zoning Code or as deemed appropriate by the Planning Commission, but not less than two spaces per unit.
e. Fire chief or his designee shall make an annual inspection of the apartment and residence to see that the structure is in compliance and make a report to the Code Enforcement Officer.
f. Property owners shall have 90 days to be in compliance.
g. No motor vehicle repair or maintenance work shall take place outdoors within 150 feet of the boundary of any residential facility.
h. Refuse storage areas shall be screened from view.
i. Mechanical and electrical equipment, including air conditioning units shall be screened from view.
j. All uses shall operate in accordance with the noise standards contained in the Noise Ordinance

An emergency is declared to exist by the City Council within the City of Rector and the passage of this ordinance is necessary for the preservation of public health, maintaining safety and public peace of the citizens of Rector. The members of the City Council hereby unanimously and expressly dispense with the rule requiring the reading of an ordinance on three different dates and this ordinance shall take immediate effect.

IN WITNESS WHEREOF, said ordinance being duly passed by the City Council of the City of Rector, Arkansas, this 3rd day of August

Ron Kemp

By: Ron Kemp, Mayor

Lowell D. McKinney

By: Lowell McKinney, Sec.